

25STCV10607 25STCV10607

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 25STCV10607 Hearing Date: June 26, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

MEGHAN

KNOX

Plaintiff,

vs.

HEDLEY

& BENNETT, INC., et al.

Defendants

Case No.:

25STCV10607

Hearing

Date:

May 21, 2026

[TENTATIVE]

ORDER GRANTING MOTION FOR SANCTIONS

I. BACKGROUND

Plaintiff Meghan Knox ("Knox") alleged employing Defendant Hedley and Bennet, Inc. ("H&B") and coworker Defendants Ellen Bennett ("Bennett"), Jonathan Bernhardt ("Bernhardt"), and Casey Caplowe ("Caplowe") made remarks about her body during pregnancy, unwelcome comments about the length of her maternity leave, and retaliatory termination. Knox sued Defendants, alleging 9 causes of action, including sexual harassment, wrongful termination, and retaliation.

Defendants filed a demurrer in July 2025, which was originally set for hearing on December 23, 2025. The Court continued the matter on its own motion to January 21, 2026. Defendants filed a motion to compel arbitration on January 14, 2026. The Court denied the motion on February 24, 2026, finding any arbitration agreement was unenforceable under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act ("EFAA") as Knox sufficiently alleged sexual harassment. (2/24/26 Minute Order.) On March 13, the Court overruled the demurrer, finding that the sexual harassment cause of action was sufficiently pleaded.

Knox moves for sanctions against Defendants for filing their motion to compel arbitration. Defendants oppose. Knox replies.

II. LEGAL STANDARD

Code of Civil Procedure section 128.7(b)[1] provides that by signing and filing a motion, an attorney "is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met: (1) [i]t is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation[;] (2) [t]he claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law[;] (3) [t]he allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery[;] (4) [t]he

denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief." (§ 128.7(b).) Section 128.7 authorizes the court to impose appropriate sanctions upon attorneys or parties that have violated subsection (b). (§ 128.7(c).)

Section 128.7 provides a 21-day safe harbor provision whereby the offending party can avoid sanctions by withdrawing the improper pleading. (See *Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 538.)

Section 128.5 provides, in relevant part:

(a)

A trial court may order a party, the party's attorney, or both to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of bad-faith actions or tactics that are frivolous or solely intended to cause unnecessary delay. This section also applies to judicial arbitration proceedings under Chapter 2.5 (commencing with Section 1141.10) of Title 3 of Part 3.

(b)

For purposes of this section:

(1)

"Actions or tactics" include, but are not limited to, the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading. The mere filing of a complaint without service thereof on an opposing party does not constitute "actions or tactics" for purposes of this section.

(2)

"Frivolous" means totally and completely without merit or for the sole purpose of harassing an opposing party. . . .

(f)

Any sanctions imposed pursuant to this section shall be imposed consistently with the standards, conditions, and procedures set forth in subdivisions (c),

(d), and (h) of Section 128.7.

III. DISCUSSION

a. Merit of Motion to Compel Arbitration

Knox requests the Court impose sanctions of \$11,586.10 on Defendants, pursuant to sections 128.5 and 128.7, for filing a frivolous motion to compel arbitration in bad faith, solely to cause delay. Pursuant to section 128.5, the Court may award sanctions for reasonable expenses incurred as a result of another party's bad faith actions, frivolous tactics, or actions solely intended to cause unnecessary delay. Under section 128.7, subd. (c), the Court may impose sanctions if a party files a motion that is being presented primarily for an improper purpose, is without legal merit or nonfrivolous argument for extension, modification, or reversal of existing law, or is unsupported by the existent or discoverable evidence.

Knox served the first set of written discovery on Defendants on August 15, 2025. (Mot. Friedman Decl., ¶ 5; Ex. 2.) Responses were initially due on September 16, 2025; Knox granted an extension to November 11, 2025. (Mot. Friedman Decl., ¶ 6; Ex. 3.) On November 7, 2025, Defendants requested Knox voluntarily withdraw discovery pending the results of Defendants' then-pending demurrer and intended motion to compel arbitration. (Ibid.) Knox's counsel refused, insinuating Knox's claims fell under EFAA and therefore were not subject to arbitration. (Ibid.) On November 11, 2025, Defendants provided discovery responses consisting solely of objections to discovery as premature and subject to arbitration. (Mot. Friedman Decl., ¶ 9; Ex. 6A-6E.) Knox moved to compel further responses, the motions for which are still pending.

On January 14, 2026, Defendants filed a motion to compel arbitration set for February 24, 2026. On January 27, 2026, Knox sent a "safe harbor" letter to Defendants of Knox's intent to pursue sanctions under sections 128.5 and 128.7 if Defendants failed to withdraw their motion. (Mot. Friedman Decl. ¶ 12, Exhibit 8.) Knox specifically identified the motion as faulty because the arbitration agreement was unenforceable under EFAA as Knox's complaint alleged causes of action for sexual harassment. (Ibid.) Defendants did not withdraw their motion prior

to the hearing date. The Court denied the motion, finding Knox's complaint had sufficient factual allegations to support the cause of action for sexual harassment and thus any arbitration agreement was unenforceable pursuant to EFAA. (2/24/26 Minute Order.)

Knox argues the motion to compel arbitration was frivolous as, Defendant should have known, Knox's claims are exempt from mandatory arbitration agreements under both federal and California law. The EFAA specifically provides no pre-dispute arbitration agreement is valid or enforceable for cases alleging sexual harassment. (9 U.S.C. §§ 401–402.) Knox alerted Defendants to the existence of this law both via the discovery meet and confer process and the safe harbor letter. In addition, Knox argues Defendants failed to pursue the arbitration agreement for seven months of litigation prior to filing the motion. Only when discovery was due did Defendants assert the existence of a binding arbitration agreement. Defendants then did not file the motion to compel arbitration for an additional two months. Knox argues these were tactical choices to freeze discovery and drive-up Plaintiff's costs. (Mot. p. 9 ¶¶ 9-11.)

Defendants argue the motion was not brought in bad faith as Defendants truly believed Knox's sexual harassment claim was deficiently pled. (Opp., p. 3, ¶¶ 8–16.) The demurrer was filed on July 14, 2025, with an original hearing date of December 23, 2025. (Opp., Shaffer Decl. ¶ 3.) It was later continued on the Court's own motion to January 21, 2026, and March 13, 2026. (Ibid.) Defendants' new counsel state that they only discovered the arbitration agreement in early November when they reviewed the content of the case file. (Id. ¶ 7.) However, Defendants' previous counsel clearly knew of the arbitration agreement because it was noted in their July demurrer. (7/14/25 Defendants' Demurrer at p. 4, ¶¶ 22-24, fn.1.)

After Knox refused to stipulate to arbitrate or to stay discovery pending the Court's ruling on the demurrer, Defendants served objection-only discovery responses. (Id. at ¶ 9.) On January 6, 2026, the Court continued the demurrer from January to March 13, 2026, leaving "Defendants had no choice but to file a MTCA on January 14, 2026, to protect Defendants' interests." (Opp., p. 4, ¶¶ 26-27, citing Opp., Shaffer Decl. ¶ 11.) In the motion to compel arbitration, Defendants stated they intended to take the motion off calendar should the

Court overrule Defendants demurrer, as EFAA would bar enforcement of arbitration agreements. (Opp., Shaffer Decl. at ¶ 11; Motion to Compel Arbitration at p. 2, fn. 1.) After receiving Knox's safe harbor letter, Defendants filed an ex-parte request to advance the hearing date on the demurrer to know whether the motion should be withdrawn; the request was denied. (Opp., Shaffer Decl. at ¶¶ 15-16.)

After reviewing the relevant papers, including Defendants' demurrer, the Court finds Defendants' motion to compel arbitration, under the circumstance at that time in the case, was not meritorious but also not frivolous. Although Defendants' new counsel's professed "discovery" of the arbitration agreement seems inconsistent with the pending demurrer, that does not lead the Court to find bad faith. More importantly, Defendants had a pending demurrer challenging the sufficiency of the sexual harassment claim. Except for the Court continuing the hearing twice, the demurrer ruling would have obviated the motion to compel arbitration. Motions to compel arbitration are time sensitive. Delay in filing such a motion is a factor in determining whether the arbitration right was waived.

The Court finds the evidence does not demonstrate Defendants filed and refused to withdraw a meritless motion, filed in bad faith. The Court denies the motion to compel sanctions.

IV. CONCLUSION

Plaintiff

Meghan Knox's motion for sanctions is DENIED.

Plaintiff is ordered to give notice.

DATED:

June 26, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.

Superior Court of
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MEGHAN
KNOX,

Plaintiff(s),

vs.

HEDLEY
& BENNETT, INC., et al.,

Defendant(s).

Case No.:

25STCV10607

Hearing

Date:

June 26,
2026

[TENTATIVE]
ORDER RE: MOTIONS TO COMPEL FURTHER DISCOVERY
RESPONSES

I. BACKGROUND

On April 9, 2025, plaintiff Meghan Knox ("Plaintiff") filed this FEHA action against defendants Hedley and Bennett, Inc. ("H&B"), Ellen Bennett ("Bennett"), Jonathan Bernhardt ("Bernhardt"), Casey Caplowe ("Caplowe") (collectively "Defendants") alleging discrimination, harassment, and retaliation based on Plaintiff's pregnancy. The Complaint sets forth various causes of action for discrimination, harassment, retaliation, failure to prevent discrimination and retaliation, violation of pregnancy disability leave, and wrongful termination based on gender, sex, and pregnancy.

On December 23, 2025, Plaintiff filed a motion to compel further responses from H&B in relation to Plaintiff's Request for Production ("RPDs"), Set One, and four other discovery motions, in addition to a request for monetary sanctions. At the direction of the Court, re-filed her Motions separately on April 6, 2026.

II. PROCEDURAL

REQUIREMENTS

A. Timeliness

The demanding party waives any right to compel a further response unless notice of the motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on a specific later date to which the parties have agreed in writing. (Code of Civil Procedure ("CCP") § 2031.310(c).) The Court has no jurisdiction to review an untimely filed motion to compel further. (Golf & Tennis Pro Shop, Inc. v. Superior Ct. (2022) 84 Cal. App. 5th 127, 134.)

Defendant H&B served responses on November 11, 2025. The initial motions filed and served on December 23, 2025 are therefore timely. On March 16, 2026, this Court ordered Plaintiff to file separate notices, memorandum of points and authorities, and any supporting declarations as related to the other motions previously filed.

B.

Meet and Confer

A motion to compel further response shall be accompanied by a meet and confer declaration under Section 2016.040. (CCP §2031.310(b)(2).) "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (CCP § 2016.040.)

Plaintiff's counsel declares he sent a meet and confer letter on November 13, 2025 and that H&B did not provide any substantive responses. (Friedman Decl. ¶ 2.)

The Court finds the meet and confer requirement not satisfied, as a single email does not demonstrate a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. However, in light of the issue presented here, in which H&B has improperly refused to provide substantive responses to Plaintiff's discovery on the grounds of an arbitration agreement/anticipated motion to compel arbitration, the Court reviews the motion on the merits.

C. Separate Statement

A motion to compel further responses requires a separate statement. (Cal. Rules of Court, rule 3.1345(a).) In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute. (CCP § 2031.310(b)(3).)

The Court finds Plaintiff has properly filed a separate statement for the motion.

iii. DISCUSSION

Here, H&B initially served purely non-substantive responses, all responding the same: "Defendant objects and will not respond to this discovery request on the ground that Plaintiff signed a valid and enforceable arbitration agreement that encompasses the claims asserted in this action, and in the event Plaintiff does not stipulate to submit her claims to arbitration, Defendant intends to promptly file a Motion to Compel Arbitration, and Defendant declines to avail itself of the processes of the court resulting in a waiver of the right to enforce the Parties' Arbitration Agreement. Accordingly, the discovery request is premature and all discovery must proceed in arbitration."

Additionally, Plaintiff initially filed her Motion on December 23, 2025, and re-filed her Motion on April 6, 2026. On April 28, 2026, HBI served verified supplemental discovery responses, prior to the date the Motion was set to be heard by the Court. In its oppositions, Defendant argues that this renders the motions moot. As of June 23, 2026, Plaintiff has not filed a timely reply.

In ruling on the initial motion to compel further on March 16, 2026, the Court noted that it denied Defendants' motion to compel arbitration on February 24, 2026, and found that Defendant's reliance on an arbitration agreement and anticipated motion to compel is not a proper ground to refuse to meet its discovery obligations.

The motions to compel are DENIED as moot as supplemental responses were served on April 28, 2026.

Sanctions are mandatory against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response. (CCP §2031.310(h).) The Court finds no justification for the manner in which H&B served responses. Further, Defendant did not serve supplemental responses until weeks after the new motions to compel further were filed. Plaintiff seeks \$7,007.10, or \$1,401.42 for each of the five motions.

The court has discretion to fix the amount of reasonable monetary sanctions. (Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc. (2020) 56 Cal.App.5th 771, 791.) The Court previously found it reasonable to grant only \$500 in sanctions for this motion in anticipation of having four more nearly identical motions. The Court has denied the new motions to compel further as moot, however, the Court now grants \$500 per motion to Plaintiff based on the Court's prior finding that there was no justification for the manner in which H&B initially served responses.

IV. CONCLUSION

Plaintiff's motion to compel defendant H&B to provide further verified responses is DENIED as moot.

Sanctions are imposed against H&B and its attorney of record, jointly and severally. They are ordered to pay sanctions to Plaintiff, through her attorney of record, in the total amount of \$2,000, within thirty (30) days.

Moving party is ordered to give notice.

DATED:

June 26, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

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